# Prior Approval Rate Application Filing Instructions

## State of California

## Department of Insurance

1

Prior Approval Rate Application Filing Instructions ........ 1

I. Introduction ........ 4

II. General Filing Information ........ 7

A. Application ........ 7

B. Affidavit ........ 8

C. Filing by Line of Insurance ........ 8

D. Filings for Individual Programs within a Line of Insurance ........ 9

E. Proposed Rate Manual and Eligibility Guidelines Pages ........ 9

F. Non-Catastrophe Model Form, Catastrophe Model Form and PRID ........ 10

G. Insurer Commitments Pursuant to California Code of Regulations §2644.4.8(d) and §2644.25.3 ........ 11

H. Questionnaire for Homeowners or Residential Property ........ 12

I. Submitting an Application with More Than Ten Coverages/Forms/Programs ........ 12

J. Withdrawal of Pending Filings ........ 12

K. Stacked Rate Changes ........ 13

III. Filing Information by Filing Type ........ 14

A. Filing Types ........ 14

B. Variance Requests ........ 14

C. New Programs ........ 14

D. Transferred Program ........ 16

E. Rates ........ 16

F. Forms ........ 17

G. Rating Rules and Eligibility Guidelines ........ 18

H. Program Withdrawals ........ 19

IV. Private Passenger Auto ........ 22

V. Filing Memorandum ........ 24

VI. Completing the Application, Rate Template, Standard Exhibits Template, Standard SIS Exhibits Template and Required Exhibits ........ 25

A. Completing the Rate Application ........ 25

B. Completing the Rate Template ........ 31

C. Completing the Standard Exhibits Template .......... 38

D. Completing the Standard SIS Exhibits Template for Commercial and Qualifying Residential Property Lines .......... 46

E. Required Exhibits .......... 53

**VII. Loss Cost Multiplier Filing Instructions .......... 65**

A. New Program Filings .......... 65

B. Existing Program Filings .......... 65

**VIII. Appendix .......... 67**

A. General Examples Demonstrating the Appropriate Filing Type .......... 67

B. Rating Sample for Illustrative Purposes .......... 70

C. Data Requirements for Filings .......... 71

# I. Introduction

Every insurer wishing to introduce new, or change existing, rules, rates or forms, or to introduce a new program, must complete a **Prior Approval Rate Application** (“Application”), an **Affidavit** and, if applicable, depending on filing type, a **Prior Approval Rate Template** (“Rate Template”) a **Standard Exhibits Template**, and, for commercial and qualifying residential property lines only, a **Standard SIS Exhibits Template**, in compliance with Title 10, Chapter 5, Subchapter 4.8 of the California Code of Regulations (CCR) and file them with the Commissioner.

The Application must include all data referred to in §1861.05(b) of the California Insurance Code (CIC), a justification of the rate and a showing that the rate meets the applicable requirements of CIC §1861.01 through §1861.16, CCR §2641.1 through §2644.28, §2648.4 and any other detailed supporting statistics and information as the Commissioner may require.

All Applications must be submitted via the National Association of Insurance Commissioners (NAIC) System for Electronic Rate and Form Filing (SERFF). Acknowledgment of filings is provided automatically through SERFF. For every Application, with the exception of form filings without rate impact, insurers must submit a complete rate manual which contains all current rates, rating factors and rating rules including any changes in rates, rating factors and/or rating rules, and the final effective date associated with those changes, before approval of the filing will be issued.

Important note: Refer to the California Department of Insurance (“Department”) website for the most current Application, Affidavit, Rate Template, Standard Exhibits Template, Standard SIS Exhibits Template, Stacked Rate Change Template, Notice of Intent to Withdraw, and prior approval factors.

Do not submit any fee with this Application. Each insurer will be billed an administrative fee.

These instructions apply only to applications for new program, rate, coverage form, rule, transferred program and program withdrawal filings for prior approval (Proposition 103) lines of business (refer to Section III for Filing Information by Filing Type). Instructions and separate applications for Class Plans, Advisory Organizations, Credit, Financial Guaranty, Title, and Workers’ Compensation, including Excess Workers’ Compensation, are available on the Department website.

All rate and transferred program filings require the completion of the Prior Approval Rate Application (PriorAppRateAPL.xlsm), the Prior Approval Rate Template (PriorAppRateTl.xlsm), the Standard Exhibits Template (StdExhTl.xlsm), and, for commercial and qualifying residential property lines (and for HO-4/HO-6 policies for Exhibit 9) only, a Standard SIS Exhibits Template (StdSISExhTl.xlsm) submitted in both Excel and PDF format. Refer to Section III for documentation for filing types other than rate filings.

Insurers are encouraged to use the Department's Prior Approval Rate Application (PARA) Portal ("Portal") for all rate filings that do not contain variance requests or insurer commitments under the Department's Sustainable Insurance Strategy (SIS). The Portal is not yet available for transferred program filings, filings with variances, filings with Standard NCOR, or programs with less than six years of experience since program inception. The Portal currently accommodates up to 20 new or revised forms; additional form changes must be submitted outside the Portal.

The Portal provides a convenient way to facilitate the accurate completion of the following:

- Prior Approval Rate Application;
- Prior Approval Rate Template;
- Standard Exhibits Template;
- Supplemental Quarterly Loss & DCCE Development Triangles (optional); and
- Affidavit.

Once these items are populated in the Portal, the insurer will be able to run a Reconciliation Report which will identify errors and warnings that must be addressed or explained in order for the Portal to generate a final Application and Templates in both Excel and PDF format. The insurer must submit the final Reconciliation Report, with all errors and warnings addressed, along with these final Application and Templates via SERFF. Refer to (PARA Portal) for more detailed instructions on the use of the Portal.

For rate filings compiled outside of the Portal, insurers must complete the Application and all appropriate Templates without the benefit of the above-mentioned reconciliation functionality.

In order to populate the spreadsheets, macros must be enabled in Excel. In addition to the Application and Templates, insurers must submit Exhibits 4, 6, 9 (for lines and coverages other than commercial and qualifying residential property lines and HO-4/HO-6 policies), 10, 11, 12 (for earthquake and certain medical malpractice exposures as defined in CCR §2644.25(b)), 14, 15, 19, 20 and 21 in both working Excel (with formulas intact) and PDF (with searchable text) format.

The Excel templates must be completed as provided. Insurers are strictly prohibited from modifying the templates in any way not expressly authorized by these instructions. This includes, but is not limited to, modifying, altering, or disabling any formulas, macros, or protected cells. Any unauthorized modification, whether intentional or inadvertent, may affect the integrity of the submitted data, distort calculated results, and compromise and significantly delay the review process. Unauthorized changes may be deemed a legal violation and may result in rejection of the filing, administrative penalties, and/or referral for investigation and enforcement action.

The Commissioner may at any time take any action allowed by law if the Commissioner determines that any eligibility guidelines, forms or procedures for application of rates, or any other portions of a current or prior Application conflict with any applicable laws or regulations.

# II. General Filing Information

## A. Application

Insurers must submit a completed Application for all new programs and changes to existing rates, forms and rules (rating and eligibility). The insurer shall indicate the amount of the overall rate impact, if any. Each insurer must indicate the type of filing submitted for review and provide the corresponding Application pages plus exhibits according to the requirements shown on Application Page 3 (Filing Type and Checklist).

Insurers must submit a rate filing Application with full rate support for any changes in rates, rating factors, rating and eligibility guidelines or contract language that affect the rate or cost of coverage to any insured due to the broadening or restricting of coverage. “Full rate support” means all exhibits and information as identified on Page 3 of the Application supporting a filing with rate impact, whether resulting from rate, rule, form or eligibility guideline changes.

The overall proposed rate impact shall be measured by changes in the adjusted earned premium and displayed on Application Page 4 (Proposed Impact).

For all filings without rate impact, insurers must submit a rule or form filing. An Application with full rate support may subsequently be required at the discretion of the Department.

Changes to rating manuals and eligibility guidelines may have a rate impact. It is the insurer’s responsibility to identify any rate impact resulting from such proposed changes. If proposed changes may impact the insurer’s rates, the insurer is required to submit a complete rate application in support of the proposed changes. If an insurer maintains that there is no rate impact resulting from proposed changes to rating manual or eligibility guidelines, the insurer is required to submit the proposed changes as part of a rule or form filing at least 90 days prior to the proposed effective date of the changes, in order for the Department to review the proposed changes for possible rate impact. The Department retains discretion to require the insurer to file a complete rate application in support of the proposed changes. The insurer shall not take any action to implement the proposed changes until or unless the Department confirms there is no rate impact.

Frequently, the Department requests rate applicants to waive the “deemed approved” dates set forth in Insurance Code section 1861.05(c). The purpose of these requests is to allow the Department sufficient time to fully review and analyze Applications to ensure their compliance with Proposition 103’s mandate that “[n]o rate shall be approved or remain in effect which is excessive, inadequate, unfairly discriminatory or otherwise in violation of this chapter.” (Ins. Code, § 1861.05(a).) While the applicant retains the legal right to deny the request, the applicant shall understand that failure to waive the “deemed approved” dates when requested, or revocation of the applicant’s existing waiver during the rate review process, may require the Department, as a matter of legal compliance, to issue a notice of hearing. This notice of hearing is necessary to ensure that the Department is able to complete its comprehensive analysis of the requested rates, and that the rates that are ultimately approved are not excessive, inadequate, unfairly discriminatory, or otherwise in violation of California insurance law.

Changes to declaration pages, insurance application forms and installment payment plans *without a fee* do not require filings. Installment payment plans that *include fees* are subject to the prior approval filing requirements.

**B. Affidavit**

Insurers must submit an Affidavit with the signature of an authorized representative of the insurer, declaring under penalty of perjury that the information contained in the filing is true, complete and correct, and that price optimization methods or models have not been used in the development of the final rates for any segment of the filed rating plan. Price optimization is defined as any method of taking into account an individual's or a class's willingness to pay a higher premium relative to other individuals or classes. The insurer must also declare under penalty of perjury that templates submitted in the filing have not been altered in any way not expressly authorized by these instructions. Only digital signatures created using Adobe Sign will be accepted. The company tracking number stated on the Affidavit should be the same as the company tracking number used in SERFF.

**C. Filing by Line of Insurance**

Filings shall be made *per line of insurance as outlined in CCR* §*2642.7* or those defined in NAIC's Uniform Property Casualty Product Coding Matrix. Select a Line Type (Personal/Commercial) and General Line of Insurance from the pull-down menu on Application Page 1 (General). It is also necessary to select a Detailed Line Description(s) from the pull-down menu on Rate Template Page 1 (General) and, if applicable, Standard Exhibits Template Page 1 (General) and Standard SIS Exhibits Template Page 1 (General). Note that these line descriptions may differ, in some cases, from the Uniform Product Coding Matrix Type of Insurance used in SERFF.

Refer to the Instructions sheets for the Application, the Rate Template, the Standard Exhibits Template and the Standard SIS Exhibits Template.

The rates, rules and forms for the same line of insurance may be combined in one Application. Commercial auto liability and physical damage ***must*** be combined in one Application, with separate Ratemaking Data and Rate Calculation pages in the Rate Template for liability and physical damage coverages. For private passenger auto, refer to Section IV for instructions.

Applications for commercial multiple peril programs that provide both liability and non-liability coverage must include both coverages within the Application, even if no rate change is being requested for one of the coverages.

**D. Filings for Individual Programs within a Line of Insurance**

Filings per line of insurance may be made for individual programs within the line (e.g., commercial automobile auto dealers). The filing must contain the rules, rates and forms for each coverage and include all supporting documentation.

*Note on travel insurance programs:* Travel insurance programs as defined in CIC §1753(c)(1) incorporate insurance coverages that are categorized under both Property & Casualty and Life & Health insurance. California law has different procedures for policy and rate review for these two categories. Therefore, Applications requesting approval of travel insurance policies and rates must be submitted separately to the Rate Regulation Branch for property and casualty rates, rules, and forms, and to the Policy Approval Bureau for sickness, accident, disability, or death, occurring during travel. Once the SERFF filing numbers are assigned, each should be cross-referenced in the filings submitted to each respective Bureau/Branch.

**E. Proposed Rate Manual and Eligibility Guidelines Pages**

For all rate, rule or transferred program filings the following items must accompany the Application:

- A clean copy of the current rate manual and eligibility guidelines pages.
- A marked-up copy of the proposed rate manual and eligibility guidelines pages. In the revised pages, underline any additions to, and use brackets ([ ]) to identify any deletions from, the current pages.
- A clean copy of the ***complete*** proposed rate manual and eligibility guideline pages.

A rate application must include **any and all** criteria, guidelines, systems, manuals, models and algorithms used or relied upon to determine the rate, rating rules and coverages for any particular applicant or insured, including optional coverage rates and rules. (Collectively referred to in these instructions as "rating rule(s)".) Note that payment plans are considered part of the insurer's rating plan and must be included in the rate manual.

Similarly, underwriting or eligibility guidelines must include any method or set of standards, parameters, rules, requirements or procedures that is used in the determination of whether to accept, examine, inspect, cancel, non-renew, or re-underwrite a risk, or to modify an applicant's or insured's coverage or coverage options including any and all criteria, guidelines, systems, manuals, models and algorithms an insurer uses to reduce, increase, or restrict the number of policies written or renewed, or restrict the coverages offered, in specific geographic areas such as ZIP codes, counties, or territories, for any reason, including over-concentration. (Collectively referred to in these instructions as “eligibility guideline(s)” or “underwriting guideline(s)”.)

Eligibility guidelines provided to the Commissioner in connection with an Application for approval of property and casualty rates pursuant to Insurance Code section 1861.05 must be available for public inspection pursuant to Insurance Code section 1861.07.

Submit all items above in PDF (with searchable text) format.

**F. Non-Catastrophe Model Form, Catastrophe Model Form and PRID**

For any rate, rule, new program or transferred program filings involving an allowable model, insurers must submit a completed Non-Catastrophe Model Form for Predictive and Scoring Models[1] and a Catastrophe Model Form for Property Lines, as applicable, as posted on the Department’s public website and on SERFF. Insurers that use a model in any form, manner, or capacity, must describe such use, along with details about the features of the model, in the Filing Memorandum. The model itself is not required to be filed.

Additionally, CCR §2644.5 permits the use of one or more catastrophe models for fire following earthquake, wildfire, and terrorism exposures in any line of insurance. Further, CCR §2644.4(d) permits the use of one or more catastrophe models for earthquake and flood lines. Model information and data may be reviewed outside of the complete rate application process in a pre-application required information determination (PRID) procedure created under CCR §2648.5, where the Model Advisor will issue an initial determination as to what model information must be submitted as part of a complete rate application relying upon a model.

- If a rate application is submitted with a PRID, insurers must submit all information and data regarding a model specified in the PRID along with completed templates or worksheets with insurer specific information. For each model for which a PRID has been issued, insurers must confirm their compliance with the notice requirements of CCR §2648.5(h)(6)(C).[2]

- If a rate application includes wildfire catastrophe model(s) without a PRID, insurers must submit a completed Wildfire Catastrophe Model Checklist in its entirety including the signed Expert Certifications (Form G-1 through G-7), the appendix of

[1] Previously named “Model Checklist”. The requirements in the previous “Model Checklist” have been separated into two different documents: “Non-Catastrophe Model Form for Predictive and Scoring Models” and “Catastrophe Model Form for Property Lines”.

[2] CCR §2648.5(h)(6)(C) requires that “An insurer that relies upon a PRID when submitting a complete rate application to the Department shall provide notice to all participants in the PRID procedure that led to the PRID upon which the insurer relies, no later than two business days after submission of the complete rate application.” Note that the term ‘all participants’ includes the model vendor.

preliminary test cases and the "Disclosures for End-Users' Use of Wildfire Catastrophe Models" section.

- If a rate application includes model(s) pending PRID procedure review, the rate application will be considered incomplete until the PRID for the model(s) is available and submitted with the rate application.

Regardless of PRID status, insurers submitting a catastrophe model for any peril in support of a rate, rule, new program or transferred program filing must also submit a Catastrophe Model Form.

**G. Insurer Commitments Pursuant to California Code of Regulations §2644.4.8(d) and §2644.25.3**

CCR §2644.4.5 permits the use of one or more catastrophe models for fire following earthquake, wildfire, and terrorism exposures to calculate the catastrophe adjustment in any line of insurance. For wildfire exposures, this use is limited to those residential insurers and commercial insurers that comply with the provisions of CCR §2644.4.8 applicable to qualifying residential property insurance and commercial property insurance, respectively. Similarly, CCR §2644.25.1(b) permits the consideration of the cost or benefits of reinsurance for catastrophe perils of flood, fire following earthquake, and wildfire exposure for those insurers that comply with the provisions of CCR §2644.25.3 applicable to qualifying residential property insurance and commercial property insurance. Insurers that elect to (1) use a wildfire catastrophe model to determine their catastrophe adjustment and/or (2) consider the cost or benefits of reinsurance in a rate application must complete and file an Insurer Commitment ("Commitment"), signed by an authorized representative of the insurer and documenting their commitment to write more business in "distressed areas" as defined by CCR §2644.4.8.

Separate sets of Commitment forms are available for qualifying residential property insurance and commercial property insurance, for consideration of reinsurance and for catastrophe model use, on the Department website, requiring the insurer to provide exposure information on an aggregate basis and in distressed areas. Additionally, the Commitment forms provide a worksheet requiring participating insurers to express their commitment to writing more business in the distressed areas, a timeline in which that commitment will be reached, and a discussion of how they will achieve that commitment. The Commitments that are required for consideration of reinsurance and for catastrophe model use are not the same. The Department expects insurers to carefully review applicable regulatory requirements prior to filing a Commitment.

### H. Questionnaire for Homeowners or Residential Property

For rate or rule filings for homeowners or residential property lines of business, insurers must submit a completed questionnaire as posted on the Department's public website and on SERFF. This questionnaire requests additional detailed information on block non-renewals and new business restrictions, wildfire rating issues, customer dislocation and the California FAIR Plan Clearinghouse Program. Failure to provide thorough and clear responses prohibits the Department from accomplishing its duties and thereby halts or impedes review of the submitted filing in a timely manner.

### I. Submitting an Application with More Than Ten Coverages/Forms/Programs

The current Application, Rate Template and Standard Exhibits Templates allow for ten coverages/forms/programs. If there are more than ten coverages/forms/programs, consider combining smaller coverages/forms/programs if the aggregated impact on the overall rate is not material and/or if the aggregated data has insufficient credibility upon which to base a rate decision.

In the case where more than ten coverages/forms/programs are still required:

- **Application** - provide one Application file with supplemental exhibits in lieu of Application Page 4 and Application Page 5. In the Filing Memorandum, identify the supplemental exhibit where this information is shown.
- **Rate Template** - consider combining similar low-volume coverages/forms/programs if appropriate in order to provide one Rate Template file. If this is not possible, provide multiple Rate Template files, and include a supplemental exhibit that contains the rate request by coverage/form/program and in total for all coverages/forms/programs (as per the summary table on Rate Template Page 2).
- **Standard Exhibits Template** - submit multiple Standard Exhibit files.

This guidance does not apply to the Standard SIS Exhibits Template for commercial and qualifying residential property lines. Refer to Section VI. D. Completing the Standard SIS Exhibits Template for additional guidance.

### J. Withdrawal of Pending Filings

An insurer wishing to withdraw its pending filing may submit a request to withdraw the filing via a SERFF filing note. The request to withdraw will be evaluated by the file reviewer. Additional questions from the file reviewer may be necessary to ensure that withdrawal is appropriate and that the existing rates in effect are not excessive, inadequate or unfairly discriminatory. If the pending filing is subject to intervention, the insurer shall also forward the request for withdrawal to the Department and the intervenor(s) via email.

**K. Stacked Rate Changes**

Insurers often submit successive applications for rate changes in which the subsequent application is submitted to the Department before the previously approved rate change (or transferred program change) has gone into effect. In these cases, to comply with CIC 1861.05(c), which references in part the public notice requirements for any proposed rate adjustment exceeding 7% "*of the then applicable rate***"** for personal lines (15% for commercial lines), insurers must identify the impact of the subsequent application *relative to the rates in effect at the time of submission* of that application. That is, insurers must identify the *cumulative,* or *stacked,* impact of the prior approved rate change and the proposed rate change in the subsequent application. For example, if the previously approved rate change was 6.9% with an effective date of December 1, 2025, and the insurer submits a subsequent rate change application to the Department for 6.9% on November 1, 2025 (before the effective date of the prior approved rate change), the cumulative impact of the two rate changes is 14.3%. Public notice of the subsequent rate application will therefore reflect this stacked rate change impact of 14.3%.

*All* insurers, whether submitting stacked rate changes or not, must submit a completed "Stacked Rate Changes" template with every rate change (or transferred program) application submitted. The Department will use this template to determine the correct percentage impact to notice to the public.

Note that while applications may be noticed to the public based on the combined impact of stacked rate changes as described above, the Application, Rate Template, Standard Exhibits Template and Required Exhibits must reflect the prior approved rate change as if it was already in effect, to ensure the accuracy of the minimum and maximum permitted earned rate changes of the subsequent rate change application.

# III. Filing Information by Filing Type

## A. Filing Types

The Application applies to the following various types of filings: New Programs, Rates (including Variance Requests), Coverage Forms, Rules, Transferred Programs and Program Withdrawals. Refer to Application Page 3 for specific information regarding the filing documents to be submitted for each type of filing.

For most lines of insurance, the regulations prescribe a particular formula and factors to determine the maximum and minimum permitted earned premium. An exception exists for specialty insurance, where the primary requirement is that the most actuarial sound method be used. A Rate Template, a Standard Exhibits Template and a Standard SIS Exhibits Template, if applicable, subject to all prior approval ratemaking requirements must also be submitted with each specialty filing. Types of specialty insurance include policies with a premium over $75,000 or a deductible over $100,000. For a complete definition of specialty insurance, refer to CCR §2642.7(d).

Refer to "General Examples Demonstrating the Appropriate Filing Type" in Section VIII Appendix for further guidance on filings by type.

## B. Variance Requests

The Application provides for the submission of variance requests. A variance is a request to adjust the maximum or minimum permitted earned premium that results from the application of the usual regulatory ratemaking formula.

Requests for variance may be submitted at the same time as the prior approval Application to which it applies or after the filing of the same. All requests for variance must identify and support the bases for the variance in accordance with CCR §2644.27, Variance Request. When a variance is requested, Application Page 11 (Variance Request) and Exhibit 13 must be completed. Refer to CCR §2644.27 for information on the allowable bases for variance requests and the documentation required to support those requests. Filings requesting a variance must include one Rate Template excluding the variance and one Rate Template including the variance. A filing with multiple variances must include one Rate Template excluding the variance and one Rate Template including the *combined impact* of all variances. If a Rate Template excluding the variance is not feasible, provide an explanation of why in Exhibit 13.

## C. New Programs

A new program is a completely new product with no existing rate manual, rules manual, policy forms, eligibility guidelines, nor policyholders. A new program is one that has not been previously written by any insurer, including an affiliated insurer who is a member of the same insurance group, or an unaffiliated insurer. A new program therefore does not have any prior program experience upon which to rely for rate development.

In order for a completed Application to qualify for submission as a new program, there must be no current book of business nor policyholders that will be rolled into, renewed into, or transferred into the program (see D. Transferred Program below). As a result, a new program Application requires at least one year of projections.

A new program differs from a rule filing in that a rule filing is intended to add, delete, or limit specific coverages to an ***existing*** program. A new program differs from a transferred program in that a transferred program represents any program that currently exists, whether written by an affiliated insurer or unaffiliated insurer, and is being moved to or assumed by another insurer.

A new program Application must contain ***all*** rates, rating rules, forms, and eligibility guidelines that pertain to the program. This requirement includes submitting all advisory organization manuals and forms being adopted. This requirement also includes the submission of mutually exclusive eligibility guidelines if CCR §2360.5 applies. Whether or not the policy jacket, policy declarations and schedule of forms are submitted with the new program Application, the insurer name must be prominently displayed on each of those documents.

For new program Applications, enter the following ***projected*** annual data reflecting a mature book of business in the New Program column of Page 6 (Ratemaking Data) of the Rate Template for each coverage, form or program included in the filing: (1) written premium, (5) miscellaneous fees and other charges, (6) earned exposures, (7) losses, (8) DCCE and (15) ancillary income. Data for Page 6, lines 16, 17 and 18 in the Rate Template will be automatically populated from Pages 3 (YieldFIT) and 4 (Excluded Exp) of the same template. Earned premium is equal to written premium.

It is ***not*** necessary to enter the following data for new program Applications: prior effective date; (2) earned premium (as it is equal to written premium), (3) premium adjustment factor, (4) premium trend factor, (9) loss development factor, (10) DCCE development factor, (11) loss trend factor, (12) DCCE trend factor, (13) catastrophe adjustment factor or (14) credibility factor.

If an insurer intends to replace or update an existing program where current policyholders are to be renewed or offered renewal into a “replacement” program written by that same insurer, the Filing Type for this Application must be identified as a rate filing and not as a new program filing. Separate requirements apply to the Private Passenger Automobile line of insurance.